

		unjust. (See e.g. CCP §§ 2030.290, subd. (c); 2031.300, subd. (c); Rules of Court, rule 3.1348(a), “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Here, sanctions are warranted. The Court orders Plaintiffs and their Counsel of record McGee & Associates to pay reasonable attorney’s fees in the amount of \$2,660 plus \$120 in filing fees for a total of \$2,780 within 30 days. Defendants are ordered to serve notice of this Order. In light of the Court’s ruling, Plaintiffs’ ex parte application filed on June 8, 2026, to continue the hearing on Defendants’ motion to compel is denied as moot. All future dates remain.
51	<i>Farah vs. Top Hill, LLC</i>	Plaintiff Fadi Farah’s general and special demurrers to Defendants Top Hill, LLC’s, Lucky 1, LLC’s, Adnan Elias’, Alaa Elias’ and Inad Elias’ First Amended Answer are overruled. An answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant and (2) a statement of any new matter constituting a defense. (Code Civ. Proc. § 431.30(b).) The same pleading of ultimate facts rather than legal conclusions is required in pleading an answer as in pleading a complaint. See <i>FPI Development, Inc. v. Nakashimi</i> (1991) 231 Cal. App. 3d 367, 384 (stating rule that answer

	must allege facts “averred as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint.”). A plaintiff can demur to an answer on the grounds that, inter alia, the answer does not state facts sufficient to constitute a defense. (Code Civ. Proc. § 430.20(a).) “Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action.” (South Shore Land Co. v. Petersen (1964) 226 Cal. App. 2d 725, 732.) A determination of the sufficiency of an answer requires an examination of the complaint because the adequacy of the answer is with reference to the complaint it purports to answer. (Id. at 733.) Here, Plaintiff generally demurs to Defendants’ 1st and 3rd - 9th affirmative defenses in their First Amended Answer. The Court finds that Defendants adequately plead the ultimate facts to support these affirmative defenses. In addition, with respect to Plaintiff’s special demurrer, Plaintiff has not shown that the affirmative defenses are so confusingly pled that they cannot determine what issues Defendants are raising. (See Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Plaintiff’s general and special demurrers are overruled. Defendants shall give notice.
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